

		Accordingly, the demurrer to the third cause of action is also SUSTAINED. Re Leave to Amend: On demurrer, a court determines whether the complaint states facts sufficient to constitute a cause of action. If the court sustains the demurrer, it must decide whether to grant leave to amend. Leave to amend should be granted if there is a reasonable possibility that the defect can be cured by amendment. Plaintiff (or here, Cross-Complainant) has the burden of proving that there is a reasonable possibility that the defect can be cured by amendment. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) Given that Cross-Complainants have had multiple opportunities to state a viable claim, and Cross-Complainants have not met their burden of establishing that there is a reasonable possibility that the defects in the SACC can be cured by amendment, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. Moving party to give notice.
13	Ama Investors, LLC vs. Pro Motorcars Inc	<u>Ds' Motion to Tax Costs</u> <u>P's Motion to Strike or Tax Costs</u> As explained below: The court GRANTS Plaintiff AMA INVESTORS, LLC's motion to tax costs in its entirety. The court DENIES Defendants PRO MOTORCARS, INC.'s and Mehrdad Jandarian's motion to tax costs. Legal Standard Plaintiff and Defendants filed competing motions to tax/strike costs. Each claim that it is the prevailing party, that the opposing party is not the prevailing party, and that certain costs items in the memorandum of costs are not recoverable.

In general, the prevailing party is entitled as a matter of right to recover costs for suit in any action or proceeding. (See, e.g., Code Civ. Proc., § 1032(b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606; *Scott Co. Of Calif. v. Blount, Inc.* (1999) 20 Cal.4th 1103, 1108.) The term “prevailing party” is defined by statute to include: The party with a net monetary recovery; a defendant who is dismissed from the action; a defendant where neither plaintiff nor defendant recovers anything; and a defendant as against those plaintiffs who do not recover any relief against that defendant. (Code Civ. Proc., § 1032(a)(4).)

Allowable costs under section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. (Code Civ. Proc., § 1033.5.) An item not specifically allowable under section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount). (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Id.* at 773-774.) On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Id.*)

As the court previously found, Plaintiff AMA Investors, LLC is the prevailing party in this action. Defendants Pro Motorcars, Inc. and Mehrdad Jandarian are therefore not entitled to costs. Accordingly, Plaintiff’s motion to strike/tax the entirety of Defendants’ memorandum of costs is GRANTED.

Given this finding, the court will proceed with addressing the items listed in Defendants’ motion to tax costs in the order that Defendants addressed them in their motion.

Electronic Fees